



October 31, 2007 8:00PM EDT | News Release

Sudan: Cease Darfur Camp Evictions

Forced Relocations by Khartoum Violate International Law



The government of Sudan's recent forced relocation of civilians in South Darfur is a serious violation of international law and could be the prelude to new attempts to dismantle certain civilian camps, Human Rights Watch warned today. Sudan's government should cease the relocation operation, immediately confirm the whereabouts and well-being of those who have been moved, and allow the African Union Mission in Sudan, the United Nations Mission in Sudan, and humanitarian agencies access to all displaced persons, whether they reside in camps or other locations in Darfur.

Between October 25 and 30, Sudanese police and military forces entered at least two locations near Nyala, the capital of South Darfur, and forced hundreds of civilians, mainly women and children, into trucks at gunpoint. At least 400 families were moved from the two sites, all of them new arrivals who had fled Kalma camp following violence the previous week.

"The Sudanese government has repeatedly tried to dismantle Kalma camp and relocate its residents by force to unsafe areas, without any security guarantees or humanitarian aid," said Peter Takirambudde, Africa director at Human Rights Watch. "International policymakers should vigorously condemn this incident and make clear to Khartoum that any relocation must be underpinned by international law and fundamental human rights guarantees."

On October 25, Sudanese armed forces and armed police moved at least 300 families from the village of Mayok, between Kalma camp and Nyala town. On the evening of October 27, they entered Otash camp, on the outskirts of Nyala town, and forced 400 people from the camp into trucks. At least 36 people reportedly were arrested and an unknown number of others were injured during the operation. On October 28, the UN and humanitarian staff tried to visit Otash, but were refused access by Sudanese security forces. The police were reported to be clearing the shelters and possessions that the displaced people had left behind.

In June 2007, Sudanese officials proposed six resettlement locations for displaced persons from Kalma, but they were rejected by the population as not secure due to the presence of militia or

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proposed sites.

“While there are clearly problems with security in Kalma camp, many people feel safer there than in rural areas where they are extremely vulnerable to ongoing attacks and have no access to humanitarian assistance,” said Takirambudde. “Rather than trying to dismantle the camps and forcibly relocate people, the government should cooperate with the African Union and UN to improve security in the camps.”

The recent events are the latest in a long history of Sudanese government attempts to close Kalma camp, home to at least 90,000 people and one of the largest camps for displaced persons in Darfur. Most of the displaced people in the camps were victims of government and “Janjaweed” militia attacks, and have no confidence in Sudanese government efforts to provide security. Many of the displaced people see the relocation efforts as an attempt to exert further control over their movements and cut off their access to Nyala town and to international aid workers.

In November 2004, there was international outcry when the government made its first attempt to forcibly relocate residents of Kalma to camps in Nyala town. Throughout 2005 the authorities maintained pressure on both the displaced people and on the humanitarian community to relocate people to an alternative site, Al-Salam. When the population refused in May 2005, the government imposed a ban on commercial activity in Kalma (including prohibiting the market and supplies of goods from Nyala town) to be lifted only if the humanitarian community began relocating people to Al-Salam. For much of 2007, the government has been again pressing displaced people to relocate from Kalma.

International humanitarian law prohibits the displacement of the civilian population, unless it is strictly for the purpose of civilian security or for reasons of military imperative. Despite government claims, it is not clear that either reason was applicable to the displacement of the population in Kalma. Governments may also seek to relocate a displaced population for the protection of public health, but again, despite government claims, there were no apparent compelling public health reasons for the relocation.

The manner in which the government carried out the forced relocations also breached their obligations to the civilian population under international law. Under international standards, any relocation of displaced persons should be voluntary, and carried out in full consultation with the displaced. Displacement must not be carried out in a manner that violates the rights to life, dignity, liberty and security of those affected, and they must not be forcibly resettled in any place where their life, safety, liberty, and/or health would be at risk. International humanitarian organizations should be given rapid and unimpeded access to internally displaced persons to assist in their resettlement.

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“Sudanese officials must end their policy of denying the reality on the ground in Darfur and start trying to rebuild the confidence of their citizens,” said Takirambudde. “The first step would be to acknowledge their own responsibility for serious crimes and take serious steps to end abuses, including by cooperating with, not obstructing, the African Union and UN.”

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